

HIL. 12 CAR.

SOUSER *versus* BURTON.

One widow Souser brought an action of the case against Burton, in these words, Thou old witch, thou old whore, leave off thy witching, or else thou shalt be hanged or burned, if I can do it. And upon not guilty pleaded, and verdict for the plaintiff, it was moved in arrest of judgment; and it seemed to Lord Finch, Hutton, and Vernon that the action lay not, without shewing that she did any act of witchcraft, for which the pain of pillory and imprisonment for two years should be inflicted, and the second time felony: and that the words, Thou art an old witch, or Go away thou old witch, are usual words, and old whore bears no action: and as to say, Thou shalt be hanged if I can do it, it is not possible that he could do it.

[133] But Justice Crawley doubted of it at first, because that it was alledged, that it had been adjudged in the Kings Bench, that an action lies for calling one witch; but afterwards he said, that he had spoken with the justices of the Kings Bench of their reason, who said, that they adjudged no such thing, unlesse that he spoke further, that the party had done any act of witchcraft punishable by the statute.

HUGLES *versus* DRINKWATER.

In account payment by appointment of the plaintiff, is no plea before the auditors where the issue was ne unques receiver.

An action of account by William Hugles against Thomas Drinkwater, for receipt of eighteen pounds, by the hands of one William Appowell, to the use of the plaintiff, the defendant plead ne unques receiver per manus, &c. and found for the plaintiff: and the defendant before the auditors plead, that he by the appointment of William Appowell had paid it to one John Marsh for the debt of the plaintiff, and thereupon demurrer. And adjudged a bad plea, and against his former issue: and the said Appowell by whose hands he received the said summ, had not any power to appoint the defendant to pay it to John Marsh, to whom the plaintiff was indebted; and if that had been pleaded in bar of the account, to have been done by the appointment of the plaintiff, it had been a good bar, vide Dyer, 29, 196, after ne unques receiver, and the truth was that he had been receiver, and had paid it over by the appointment of the party, and yet by this plea he hath lost the advantage thereof.

AN. 2 CAR.

In what cases a prisoner arraigned shall have counsell.

Memorand. That the 19 day of May, an. 2 Car. all the Judges being assembled at Serjeants Inn in Chancery Lane, by the commandment of the King, the Attorney General propounded, that the King would be satisfied by our opinion, whether any person which is arraigned of treason or felony, ought by the fundamental lawes of this realm to have counsell; and we all una voce answered.

That when any one is indicted of felony or treason, or any other such offence, the party ought not to have any counsell, unlesse it be upon matter in law, as where he demand sanctuary, or plead any special matter, and that is agreed by Stamford, fol. 151.

Also this extends as well to peers of the realm, as to others, vide 1 H. 7, 23, and the 9 E. 4, 2, and so it was agreed by all, that although the party shall have counsell in an appeal of murther, yet if he be non-suited, and the party be arraigned upon the declaration, then he shall have no counsell.

Also it was resolved, that when the party who prosecute, suppose that the grand jury will not find the indictment, & therefore requires that the evidence should be given publicly to the jury at Bar (which is sometime done) yet the party who shall be indicted, shall not have counsell. And the Attorney General was commanded to report our opinion to the King; and this hapned to be demanded upon the general inconvenience that might after ensue in the case of the Earl of Bristol, to whom the King had allowed counsell.